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SUPREME COURT OF THE UNITED STATES

No. 24–351

UNITED STATES POSTAL SERVICE, ET AL., PETITIONERS *v.* LEBENE KONAN

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

[February 24, 2026]

JUSTICE THOMAS delivered the opinion of the Court.

The United States enjoys sovereign immunity and cannot be sued without its consent. By means of the Federal Tort Claims Act, Congress waived that sovereign immunity for certain tort suits based on the conduct of Government employees. See 28 U. S. C. §§2674, 1346(b). But, in the provision at issue in this case, Congress retained sovereign immunity for a wide range of claims about mail. Specifically, the FTCA's postal exception retains sovereign immunity for all claims "arising out of the loss, miscarriage, or negligent transmission of letters or postal matter." §2680(b). This case concerns whether this exception applies when postal workers intentionally fail to deliver the mail. We hold that it does.

I

A

The United States Postal Service is a frequent point of contact between citizens and the Federal Government. In 2024, the Postal Service's more than 600,000 employees delivered more than 112 billion pieces of mail—over 300 million a day—to more than 165 million delivery points. See

United States Postal Service, Fiscal Year 2024 Annual Report to Congress 3, 29, 32, 34. Unsurprisingly, given this volume, not all mail arrives properly and on time. The Postal Service reports receiving approximately 335,000 customer complaints per year. See Brief for Petitioners 24.

Because it is a Government agency, recourse against the Postal Service in the form of lawsuits for money damages is limited. As part of "the executive branch of the Government of the United States," 39 U. S. C. §201, "the Postal Service enjoys federal sovereign immunity absent a waiver," *Dolan* v. *Postal Service*, 546 U. S. 481, 484 (2006). Before 1946, that sovereign immunity generally prevented those injured by Government employees from receiving compensation through lawsuits. See *Molzof* v. *United States*, 502 U. S. 301, 304 (1992). That year, Congress enacted a "limited waiver" of immunity through the FTCA. *Id.*, at 305. Subject to enumerated exceptions, the FTCA allows a plaintiff to sue the Government for injuries or loss of property "caused by the negligent or wrongful act or omission of" a federal employee "acting within the scope of his office or employment." 28 U. S. C. §1346(b)(1).

The FTCA's postal exception retains the Government's sovereign immunity for lawsuits about failing to properly carry or deliver mail. It forecloses "[a]ny claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter." §2680(b). This Court has interpreted the postal exception to apply when the plaintiff is harmed "because mail either fails to arrive at all or arrives late, in damaged condition, or at the wrong address." *Dolan*, 546 U. S., at 489.

B

This case arises from the dismissal of a complaint, so we accept the complaint's allegations as true, although the Government disputes them. *National Rifle Association of America* v. *Vullo*, 602 U. S. 175, 181 (2024). Respondent

Lebene Konan owns two houses a block apart in Euless, Texas—one on Saratoga Drive and the other on Trenton Lane. Konan leases rooms to tenants in both houses and occasionally stays at them herself. The Postal Service delivers mail for all the houses in the neighborhood to a central structure with a box for each house. The Postal Service distributes keys to the owners of the houses so that they can retrieve their mail. As the homeowner, Konan received the keys to the boxes for both houses. Konan kept the keys and distributed the mail to her tenants daily, and she also received some of her own mail at the Saratoga address.

Konan's grievances with her mail service began in May 2020. After Konan noticed that no mail had arrived at her Saratoga house in several days, she learned that the assigned carrier had changed the listed owner from Konan's name to a tenant's name. The same carrier then authorized a change of the lock to allow the tenant to have his own mail key without Konan's consent. Konan confronted the employees at the local post office about these changes. A supervisor at the local post office explained to Konan that the Postal Service would stop delivering mail to her Saratoga address until the Postal Service Inspector General's office investigated and determined the proper owner. Konan then received no mail to the Saratoga address for a couple of months before service resumed.

Konan then learned that the same carrier had mail addressed to her and her tenants returned to senders as "undeliverable." As a result, Konan and her tenants did not receive important mail. Konan resorted to private carriers. The disruptions in mail service resulted in the loss of tenants and made it more difficult for Konan to attract new tenants. The carrier also taped a red notice inside the mailbox stating that mail addressed to some, but not all, of the Saratoga residents could be delivered to the box. In 2021, postal workers also allegedly stopped delivering mail to the

Trenton house after discovering that Konan owned it as well.

In response, Konan signed up for the Postal Service's "Informed Delivery" service, which allows customers to view scans of incoming mail. When she discovered that mail on its way to her addresses was not being delivered, she requested that the mail for the Saratoga residence be held at the post office so that she could retrieve it in person. But the postal employees did not give her the mail because Konan failed to provide identification for the addressees. In addition to these efforts, Konan also filed administrative complaints, but without success.

C

In January 2022, Konan sued the United States in federal court. Konan alleged that the Postal Service intentionally and wrongfully withheld her mail. As relevant here, Konan brought claims under state law for nuisance, tortious interference with prospective business relations, conversion, and intentional infliction of emotional distress. She sought damages for loss of rental income, the deprivation of her rightful mail, and the distress that the postal workers caused her.*

The District Court dismissed Konan's complaint based on sovereign immunity. Relying on the postal exception, it concluded that the United States enjoys sovereign immunity from her claims "because they all relate to 'personal or financial harms arising from nondelivery . . . of sensitive materials or information . . .' and other mail." 652 F. Supp. 3d 721, 731 (ND Tex. 2023) (quoting *Dolan*, 546 U. S., at

*Konan also brought discrimination claims against the postal workers under 42 U. S. C. §§1981 and 1985, alleging that they were motivated by racial animus. The District Court dismissed these claims. 652 F. Supp. 3d 721, 731–732 (ND Tex. 2023). The Court of Appeals affirmed. 96 F. 4th 799, 804–805 (CA5 2024). We denied Konan's cross-petition for certiorari regarding those claims, so they are not before us. 604 U. S. 1256 (2025).

489). The District Court held that the postal exception is not limited to merely negligent failure to properly carry the mail. 652 F. Supp. 3d, at 730–731.

The Court of Appeals for the Fifth Circuit reversed. It held that "the terms 'loss,' 'miscarriage,' and 'negligent transmission' do no not encompass the intentional act of not delivering the mail at all." 96 F. 4th 799, 804 (2024). It reasoned that Konan's claims did not arise out of the "loss" of mail "because the mail was not destroyed or misplaced by *unintentional* action." *Id.*, at 802 (emphasis added). It also reasoned that Konan's claims did not arise from the "miscarriage" of mail "because there was no attempt at a carriage." *Ibid.* And it reasoned that Konan's claims did not arise from the "negligent transmission" of mail because "the postal workers' actions were intentional." *Ibid.*

The Fifth Circuit's decision conflicts with those of the First and Second Circuits, which have interpreted the postal exception to apply to suits even when they arise from harms caused by intentional misconduct. See *Levasseur* v. *United States Postal Serv.*, 543 F. 3d 23, 23–24 (CA1 2008) (*per curiam*); *Marine Ins. Co.* v. *United States*, 378 F. 2d 812, 813–814 (CA2 1967). We granted certiorari to resolve the split. 604 U. S. 1256 (2025).

II

The postal exception retains the Federal Government's sovereign immunity for "[a]ny claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter." 28 U. S. C. §2680(b). The postal exception reflects Congress's judgment that redress for "harms" of "the sort primarily identified with the Postal Service's function of transporting mail throughout the United States" should not come from tort suits. *Dolan*, 546 U. S., at 489. Given the frequency of postal workers' interactions with citizens, those suits would arise so often that they would create a significant burden for the Government and the courts. And

their cost to taxpayers would depend on the value and importance of the mail's contents, over which the Government typically has no control. See, *e.g.*, *Marine Ins. Co.*, 378 F. 2d, at 813 (theft from mail of six emeralds valued at $152,190 in 1967 dollars).

According to Konan and the dissent, the postal exception does not apply to Konan's claims because she alleges that postal workers intentionally refused to deliver her mail. We disagree. Both "miscarriage" and "loss" of mail under the postal exception can occur as a result of the Postal Service's intentional failure to deliver the mail.

A

Absent a reason to think otherwise, we interpret statutory terms according to the ordinary meanings they had when they were enacted. *Wisconsin Central Ltd.* v. *United States*, 585 U. S. 274, 277 (2018). When Congress enacted the FTCA in 1946, the "miscarriage" of mail ordinarily included any failure of mail to properly arrive at its intended destination. Konan would limit "miscarriage" to unintentional failures or failures where the mail went to the wrong address. Neither limitation is well founded.

Dictionaries published around the time Congress enacted the FTCA confirm that a "miscarriage" of mail happened when mail failed to arrive properly. Two dictionaries indicate that "miscarriage" of mail meant the "failure of a letter . . . to reach its destination." 2 New Century Dictionary of the English Language 1069 (1927); accord, 6 Oxford English Dictionary 497 (1933 ed.) ("The failure (of a letter, etc.) to reach its destination"). In a third, "miscarriage" meant the "[f]ailure (of something sent) to arrive." Webster's New International Dictionary 1568 (2d ed. 1934) (Webster's Second). Definitions of "miscarry" were similarly broad. *Ibid.* ("To fail of reaching the destination"); 6 Oxford English Dictionary, at 498 ("To fail to reach its proper destination"). Something can "fail" to happen as a result of intentional

misconduct. See, *e.g.*, 26 U. S. C. §291 (1940 ed.) (imposing a penalty for "failure to make and file [a tax] return" "unless it is shown that such failure is due to reasonable cause and not due to willful neglect"). Because a "miscarriage" includes any failure of mail to arrive properly, a person experiences a miscarriage of mail when his mail is delivered to his neighbor, held at the post office, or returned to the sender—regardless of why it happened. Konan's claims about the Postal Service's willful failure to deliver her mail therefore result from the miscarriage of her mail.

We disagree with Konan's attempt to limit "miscarriage" to *negligent* failures of mail to arrive properly. Brief for Respondent 19–20; accord, *post*, at 9 (SOTOMAYOR, J., dissenting). Neither Konan nor the dissent cites any dictionaries imposing this limitation. Instead, Konan cites examples of uses of the term "miscarriage" that suggest that the miscarriage in question was unintentional, such as an 1868 telegraph-law decision explaining that a telegraph company should not be liable "for every mistake, miscarriage, or accidental delay that may occur." *United States Tel. Co.* v. *Gildersleve*, 29 Md. 232, 246 (1868). We agree that miscarriage of mail *can* be unintentional, but "the fact that the phrase was commonly used in a particular context does not show that it is limited to that context." *District of Columbia* v. *Heller*, 554 U. S. 570, 588 (2008).

In fact, ordinary speakers used "miscarriage" to refer to problems with mail caused by intentional misconduct. When a mail pouch was "stolen," a newspaper reported that the letters "[m]iscarried." Kansas City Star, Oct. 20, 1911, p. 6A. When a priest failed to receive a summons because it was "burned by an ecclesiastic," the headline read "His Letter Miscarried." The Carbondale Leader, Jan. 3, 1893, p. 1. And when litigants' documents failed to arrive, courts classified "miscarriage" of mail as an excuse, without any suggestion as to whether the carrier acted intentionally. See, *e.g.*, *Lake* v. *Lake*, 63 Wyo. 375, 402, 182 P. 2d 824, 835

(1947) (*per curiam*); *Wagner* v. *Lucas*, 79 Okla. 231, 232–233, 193 P. 421, 422–423 (1920). We see no reason to suppose that these uses of "miscarriage" were extraordinary.

Konan separately contends that a "miscarriage" of mail happens only when the mail goes to the "wrong address," not when it is (like her mail) held at the post office or returned to the sender. Brief for Respondent 15. We again decline to impose a limitation that has no basis in the dictionaries or ordinary usage. Speakers used the term "miscarriage" when the mail failed to reach its intended destination, regardless of where it ended up. One newspaper, for example, explained that a letter "'[m]iscarried'" because it was "'delayed.'" Muskogee Times-Democrat, June 15, 1934, p. 1. Another ran a story in which a correspondent's "letter miscarried and came too late." Jersey City, N. J., The Evening Journal, June 10, 1907, p. 10. And a court described mail mistakenly left "in the post office" as having "miscarried." *Heinrich* v. *First Nat. Bank*, 219 N. Y. 1, 4, 6, 113 N. E. 531, 531–532 (1916).

We decline Konan's invitations to "artificially narrow ordinary meaning." *Bartenwerfer* v. *Buckley*, 598 U. S. 69, 77 (2023). A "miscarriage of mail" includes failure of the mail to arrive at its intended destination, regardless of the carrier's intent or where the mail goes instead.

B

Konan's withholding claims also arise out of the "loss" of mail and are therefore within the postal exception. 28 U. S. C. §2680(b). When Congress enacted the FTCA, the "loss" of mail ordinarily meant a deprivation of mail, regardless of how the deprivation was brought about. So, like "miscarriage," intentional refusal to deliver mail could cause the "loss" of mail.

A "loss" of mail is a deprivation of mail. "Loss is a generic and relative term; it is not a word of limited, hard and fast meaning." Black's Law Dictionary 1094 (4th ed. 1968). But

it is commonly used to refer to any "deprivation" or "that which is withheld," *id.*, at 1095, such as when someone suffers the loss of property in a fire or the loss of income from being laid off. Webster's defined "loss" as the "[a]ct or fact of losing (in various senses) or suffering deprivation." Webster's Second 1460. Oxford English Dictionary defined it as "being deprived of, or the failure to keep" something. 6 Oxford English Dictionary, at 452. One can, of course, suffer a deprivation of something when another intentionally keeps that thing for himself. Konan alleged that she was "entitled to possession" of her mail but that the Postal Service "converted" it. App. to Pet. for Cert. 58a–59a. Conversion means that Konan was "deprived of the use and possession of the property" in question. Black's Law Dictionary 421 (12th ed. 2024). Konan's claims therefore arise out of the loss of her mail.

As with "miscarriage," we disagree with Konan's attempt to limit "loss" to only inadvertent losses. See Brief for Respondent 27–28; *post*, at 6–7 (opinion of SOTOMAYOR, J.). A loss can be the result of another person's intentional misconduct. One can, for example, suffer a tax "loss" that results from "embezzlement." See, *e.g.*, *Burnet* v. *Huff*, 288 U. S. 156, 160 (1933). An army can suffer "loss" of soldiers as a result of the intentional conduct of the enemy. Funk & Wagnalls New Standard Dictionary of the English Language 1465 (1942 ed.). And, in the mail context, ordinary speakers commonly described a "loss" of mail from theft, including theft by the carrier. Just a year before Congress enacted the FTCA, the Army explained that "[v]irtually all *loss* of mail through theft occurs at terminal transfer points outside this country." Pittsfield, Mass., Berkshire Evening Eagle, Feb. 9, 1945, p. 3 (emphasis added). A few years earlier, a reported "[l]oss of [l]ocal [m]ail" was caused by a rogue "mail handler, who admitted the theft of considerable mail during the past few months." Belvidere News, Dec. 3, 1936, p. 1. Pre-FTCA decisions also described a "loss" of

mail when the carrier stole it. *E.g.*, *Boerner* v. *United States*, 117 F. 2d 387, 387–388 (CA2 1941); *Martin* v. *United States*, 280 F. 513, 514 (CA4 1922).

We also disagree with Konan's, and the dissent's, rejoinder that the postal exception applies only when the Postal Service *lost* the mail. See *post*, at 7–8. Congress could have written the postal exception to apply only when "the Postal Service lost, miscarried, or negligently transmitted" mail. But Congress applied the postal exception to all "claim[s] arising out of the loss, miscarriage, or negligent transmission" of mail. It described kinds of harms, not kinds of actions by the postal workers. See *Dolan*, 546 U. S., at 489; contra, *post*, at 4 (opinion of SOTOMAYOR, J.). We decline to rescue Konan's claims by inserting the Postal Service as the sentence's subject and then converting the three nouns into three verbs. Cf. *Terry* v. *United States*, 593 U. S. 486, 494 (2021) ("[W]e will not convert nouns to adjectives and vice versa").

Our interpretation of "loss" is also consistent with the principal provision of the FTCA. Under that provision, a plaintiff must allege a "loss of property . . . caused by the negligent or wrongful act or omission" of a federal employee. 28 U. S. C. §1346(b)(1). All agree that this provision includes losses caused by intentional misconduct and does not require that the Government "lost" anything. Because Congress used "loss" in this sense in the FTCA's principal provision, our interpretation adheres to the unrebutted presumption that "the term bears a consistent meaning throughout" the FTCA. See *Azar* v. *Allina Health Services*, 587 U. S. 566, 576 (2019).

Last, Konan proposes limiting "loss" to only "destruction." She contends that the "primary" meaning of "loss" in 1946 was "destruction," not any other kind of deprivation. Brief for Respondent 25–26. But, as we have explained, ordinary speakers referred to "losses" of mail, even when the mail was not destroyed. Judge Cardozo wrote that when an

envelope fell behind a radiator in the post office, it caused the "loss" of the checks inside even though they were later recovered. *Heinrich*, 219 N. Y., at 4, 113 N. E., at 531. And, contemporaneous regulations treated "loss" and "destruction" separately, not, as Konan suggests, synonymously. See, *e.g.*, Postal Laws and Regulations §159 (1940 ed.) (delaying certain procedures until officials have "determined that such loss, destruction, or damage resulted from no fault or negligence on the part of" a postmaster). Konan asserts that "destruction" was the "primary" meaning of loss because it was listed as the first definition in dictionaries. Brief for Respondent 25–26. But, "[a]lthough many people assume that the first sense listed in a dictionary is the 'main' sense, that is often quite untrue." A. Scalia & B. Garner, Reading Law: The Interpretation of Legal Texts 418 (2012). The definitions Konan pointed to were listed first because they were the oldest, not because they were primary. See 1 Oxford English Dictionary, at xxxi ("[T]hat sense is placed first which was actually the earliest in the language . . . "); 1 New Century Dictionary, at iii ("In general, the senses of each word are arranged, as far as possible, in the order of their derivation and development from the original source . . . "); Webster's New International Dictionary ix (1927) (following "[t]he principle of historical arrangement followed in the earlier editions"). We do not presume that Congress intended the *oldest* usage, but rather the ordinary one in 1946, and contemporaneous evidence shows that Konan's usage was not the primary one.

III

Konan proffers two remaining arguments that her claims must not be barred by the postal exception. We address them in turn.

First, Konan argues that the postal exception's "negligent transmission" category narrows the meaning of "miscarriage" and "loss." She argues that the qualifier "negligent"

in the term "negligent transmission" implicitly qualifies the other two terms. But Congress intentionally limited the "negligent" qualifier to "transmission" and did not use it to qualify "loss" or "miscarriage." Konan's "argument seems to assume that pairing a broad statutory term with a narrow one shrinks the broad one, but there is no such general usage." *S. D. Warren Co.* v. *Maine Bd. of Environmental Protection*, 547 U. S. 370, 379 (2006). Just like "a limiting clause or phrase . . . should ordinarily be read as modifying only the noun or phrase that it immediately follows," an adjective before the final noun in a list cannot be transplanted to qualify the preceding nouns. *Barnhart* v. *Thomas*, 540 U. S. 20, 26 (2003). We also do not think that the "negligent" qualifier suggests that Congress was trying to enable suits involving intentional misconduct. Contra, *post*, at 5–6 (opinion of SOTOMAYOR, J.). If Congress had written the postal exception to refer to all "transmission" of mail, the category—unlike "miscarriage" and "loss"—would have encompassed claims that involved mail even though nothing went wrong with its transport or delivery. See *Dolan*, 546 U. S., at 486 (acknowledging the broad meaning of "transmission" in isolation). The inclusion of "negligent" to qualify "transmission" forecloses that result and thereby keeps the focus of the postal exception on mail-delivery problems, but, in doing so, it does not limit the other two categories.

Second, Konan argues that our interpretations of "miscarriage" and "loss" run afoul of the presumption against surplusage. On our interpretation, she argues, many claims—including Konan's here—will arise from both a "miscarriage" and a "loss" of mail, making one or the other redundant. To solve the surplusage, Konan proposes three nonoverlapping definitions: "Loss" covers "damage" to mail; "miscarriage" covers "what happens" to mail "when it leaves the USPS's custody and ends up in the wrong place"; and "negligent transmission" covers "detention or delays of the mail while still in the USPS's possession." Brief for

Respondent 9. Konan's proposal is inconsistent with ordinary meaning, which shows that these terms were often used in an overlapping manner. See, *e.g.*, *Heinrich*, 219 N. Y., at 4–6, 113 N. E., at 531–532 (describing "[t]he loss of the checks" that "miscarried in the mails"); *Brevard* v. *Wimberly*, 89 Mo. App. 331, 338–339 (1901) ("miscarriage of . . . packages" could lead to "the loss of a registered package"). And, in *Dolan*, the Court interpreted the terms in the postal exception to substantially overlap. See 546 U. S., at 487. The canon against surplusage is subordinate to the "cardinal canon" that "a legislature says in a statute what it means and means in a statute what it says there." *Connecticut Nat. Bank* v. *Germain*, 503 U. S. 249, 253–254 (1992). We think that Congress likely used broad, overlapping terms to better keep complaints about mail delivery out of court.

IV

We hold that the postal exception covers suits against the United States for the intentional nondelivery of mail. We do not decide whether all of Konan's claims are barred by the postal exception, or which arguments Konan adequately preserved. We vacate the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.